WARRANTY ATLAS · Idaho (ID)

Law last amended: 2011 (eff. 2011-07-01) · Next scheduled change: none found · Last verified: 2026-10-06 · Built 2026-11-09

Cites: Idaho Code § 49-1626; Idaho Code § 49-1617; Idaho Code § 49-1617B; Idaho Code § 49-1610(2); Idaho Code §§ 49-1602(2), 49-1620

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Factory time (reasonable/adequate standard where stated)	§ 49-1626(2); see (1) (manufacturer provides 'the time allowance for the performance of that work')
Mfr-backed service contract	**Not addressed**	-	§ 49-1613(4) (anti-coercion only; not a reimbursement rule)
CPO warranty	**Not addressed**	-	§ 49-1626(1)
Independent service contract	**Not addressed**	-	§ 49-1626(11)(a)(iii) (retail-rate RO exclusion only)

Hourly rate: Not less than the dealer's rate charged to retail customers for nonwarranty labor, provided it is not unreasonable compared with same or competitive franchises in the area. The dealer declares the rate from 100 sequential customer-paid ROs or 90 days of ROs, whichever is less, covering repairs within 180 days. The declared rate is presumed fair and takes effect within 90 days. At most one change per 12 months.

Audit fields

Field	Rule	Pinpoint
Claim decision	30 days; late claim deemed approved: Yes. A claim must be specifically disapproved in writing within 30 days of receipt, or it is approved; the statute has no stated-grounds requirement	§ 49-1626(5)
Payment	30 days after approval. Dealer filing deadline: No fixed deadline. A claim may be submitted if the defect was identified and documented before the warranty expired, including after franchise termination for work done while the franchise was in effect (§ 49-1626(4)). 30 days from notice of a denial or chargeback to resubmit a claim denied for a clerical error or other administrative technicalit…	
Chargebacks	12 months; fraud: May audit for fraudulent claims during any period in which a fraud ac…. Chargeback only after an audit, and only if the mfr shows by a preponderance that the repair was improperly or substandardly performed or unnecessary, or that the claim is unsubstantiated under mfr requirements (§ 49-1626(9)). Dealer may resubmit clerical den…	§ 49-1626(8)
Rate resubmission	Once every 12 months. Sample: 100 ROs or 90 days (fewer of the two samples); ROs <= 180 days old. Excluded: Discounted / promotional, Insurance-paid, Service-contract paid, State inspections, Fleet, Engine / transmission assembly, Routine maintenance, Tires, Prep / reconditioning, Other (see text).	§ 49-1626(11)(b)
Mfr response	30 days; no response = approved: Yes. Challenge: Rate presumed fair and reasonable. The retail-rate floor applies only if the rate is 'not unreasonable when compared with other motor vehicle franchises from the same or competitive lines ... in the geographic area' (§ 49-1626(11)) Forum: After mediation (§ 49-1617A), protest to the Idaho Transportation Dep….	§ 49-1626(11)(b)
Penalties	Protest: costs and reasonable attorney's fees to a dealer who prevails and suffered pecuniary loss; treble pecuniary loss for a willful violation (§ 49-1617(3)). Civil action for actual damages, declaratory or injunctive relief, costs and attorney's fees; dealer associations have standing (§ 49-1617B). Damages and equitable relief for…	Idaho Code §§ 49-1602, 49-1610(2), 49-1613(1)(b), 49-1617(3), 49-1617…
Audit procedures	Audit climate score 29/100 (Moderate restrictiveness; chargeback limits 27/75 + process and oversight 2/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: no; frequency cap: none; written reasons: no; response period: 30 days; internal appeal: no; held pending appeal: no; extrapolation: silent; clerical-error protection: yes; rate validation: broader or no procedure.	

Statute quotes

Claims *(§ 49-1626(5)): "shall be paid within thirty (30) days following their approval … any claim not specifically disapproved in writing within thirty (30) days after receipt shall be construed to be approved"*

Chargebacks *(§ 49-1626(8)): "after the expiration of one (1) year after the date of payment of the warranty claim, a manufacturer or distributor shall not audit the records of a motor vehicle dealer to determine compliance with the terms of a warranty claim."*

Rate *(§ 49-1626(11)(b)): "one hundred (100) sequential customer paid service repair orders or ninety (90) days of customer paid service repair orders, whichever is less, covering repairs made no more than one hundred eighty (180) days before the submission"*

Factory time *(§ 49-1626(2); see (1) (manufacturer provides 'the time allo…): "Time allowances for the diagnosis and performance of warranty work and service shall be reasonable and adequate for the work to be performed."*

Notes

Time allowances for diagnosis and repair must be 'reasonable and adequate' (§ 49-1626(2)). No cost recovery by surcharge (§ 49-1626(13)). RVs keep the procedures, but the (11) retail rate does not apply to living-area components (§ 49-1626(14)). Per the prior head-start file (not re-verified here), 2023 H0127/H0129 and 2026 S1424 died; the official ch. 16 PDF shows no post-2011 change to § 49-1626.

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